

ARIZA v LAKESIDE VENTURES, LLC

22CV46059

DEFENDANT'S MOTION FOR TERMINATING SANCTIONS

This matter involves a lengthy and ongoing dispute over the sale of a mobile home estate located at 1475 Railroad Flat Road, Mokelumne Hill, CA ("Mobile Home Estate.") Before the Court is the motion for terminating sanctions filed by Lakeside Ventures, LLC and Bonnie K. Tuckerman-Aho (Hurley) ("Defendants.")

The Court continues this matter to April 24, 2026, to be heard on the same calendar as Plaintiff's Motion for Relief of Order For Financial Hardship.

The clerk shall provide notice of this ruling to the parties forthwith. No further formal Order is required.

DISCOVER BANK v WEBER

23CF14324

PLAINTIFF'S MOTION FOR JUDGMENT

This matter involves nonpayment of a credit card debt brought by Discover Bank ("Plaintiff") against Tiffany Weber ("Defendant.")

Now before the Court is Plaintiffs' motion to enter judgment pursuant to Code Civil Procedure section 664.6. The motion is not opposed.

I. Background

On May 1, 2025, the parties filed a stipulation of settlement. Pursuant to that settlement, Defendant agreed she owed \$2,214.87 on a credit card account. (Declaration of Zhen Ren ("Ren Decl.") ¶5, Ex. A)("Agreement.") However, Plaintiff and Defendant agreed that Plaintiff would pay \$1,622.07 to resolve the matter. (*Id.* ¶ 4.) The Agreement called for Defendant to make monthly payments of \$67.60 starting on November 28, 2024, and continuing monthly, with final payment to be on October 28, 2026. (*Id.* ¶ 6.) However, Defendant did not pay according to the terms of the Agreement, instead making a first payment on December 3, 2024, in the amount of \$125.00. (*Id.* ¶ 7) and a last payment on December 2, 2025. (*Ibid.*)

The Agreement contained the following language:

Pursuant to Code of Civil Procedure 664.6, and should Defendant(s) fail to make any payment on or before the stated due date, the Plaintiff shall immediately be free to pursue all available penalty remedies including by not limited to Code of Civil Procedure section 664.6 and to file a Motion, ExParte Application, Declaration and Order and/or a new lawsuit to vacate any dismissal and to have judgment entered against Defendant for \$2,214.87 plus Court costs, less any amounts received by Plaintiff from Defendant. (Agreement ¶ 6.)

II. Legal Standard and Analysis

Cal. Civ. Proc. Code § 664.6(a) provides that:

If parties to pending litigation stipulate, . . . orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If the parties to the settlement agreement or their counsel stipulate in writing or orally before the court, the court may dismiss the case as to the settling parties without prejudice and retain jurisdiction over the